

Circular Memo.No.785/Spl.C/A1/2010, G.A. (Spl.C) Dept., dt.08.02.2011 Deviation from the advice of Vigilance Commissioner - Sanction of prosecution in the form of a speaking order - Reiteration of instructions Reg.

Subject Heading : Deviation from the advice of Vigilance Commissioner – Reasons should be recorded in writing for not granting sanction of prosecution in the form of a speaking order.

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1. U.O.Note No.2751/SC.E/1995-1, G.A. (SC.E) Dept., dt.16.09.1995.
 2. Circular Memo.No.609/Spl.B/1999, G.A. (Spl.B) Dept., dt.19.06.2002.
 3. From the D.G., A.C.B., Hyderabad, D.O. Lr.No.153/RPC(C)/2010-2, dt.10.12.2010.

In the reference 2nd cited, while reiterating the instructions issued in the reference 1st cited, it has been instructed that in cases where the competent authorities propose to deviate from the advice of the Vigilance Commission, they should record reasons for not granting sanction of prosecution in the form of speaking order while communicating the same to the D.G., A.C.B., Hyderabad, A.P. Vigilance Commissioner and to General Administration Department.

2. The Director General, Anti-Corruption Bureau, Hyderabad has brought to the notice that a review of the cases, pertaining to Revenue Department where sanction of prosecution orders are not given revealed that in all such cases, the competent authority has not issued speaking orders but just quoted the representation received from the accused officer which is not at all permissible. Exercise of discretion by the Competent Authority to refuse or accord sanction, must be in accordance with law and the Competent Authority should assign reasons as to why it did not consider it necessary to accord sanction of prosecution. The relevant legal position is as follows:-

- 1) The Government Memo. / Order does not disclose that the authority had arrived at the prima facie satisfaction that the relevant facts, referred to in the report submitted by the A.C.B. does not constitute an offence under the P.C. Act, 1988. (K.Srinivasulu Vs. the Govt. of A.P. represented by its Prl.Secretary, Home (SC.A) Dept., in W.P.No.14967 of 2009).
- 2) Exercise of discretion by the competent authority, to refuse or accord sanction, must be in accordance with Law. The Competent Authority is required in law to assign reasons why it did not consider it necessary to accord sanction for prosecution. (K.Srinivasulu Vs. the Govt. of A.P. represented by its Prl.Secretary, Home (SC.A) Dept., in W.P.No.14967 of 2009).
- 3) The Government order should clearly mention that sanction for prosecution under the P.C.Act, 1988 is being accorded or refused. Non-explicit order that prosecution under the P.C. Act, 1988 is being refused indicated non-application of mind. (K.Srinivasulu Vs. the Govt. of A.P. represented by its Prl. Secretary, Home (SC.A) Dept., in W.P.No.14967 of 2009).

- 4) Grant of sanction is an administrative function. The question of giving an opportunity of hearing to the accused before granting sanction does not arise. (Deepak Chowdahary (1995) 6 SCC 225 – AIR 1996 SC 186).

3. Government hereby reiterate that whenever the Competent Authority proposes to deviate from the advice of the Vigilance Commissioner, reasons should be recorded in writing for not granting sanction of prosecution in the form of a speaking order. All the Departments of Secretariat and HoDs are requested to follow these instructions scrupulously.